AMERICAN FEDERATION OF LABOR

LONG DISTANCE TELEPHONE NATIONAL 3870-1-2-3-4
CABLE ADDRESS AFEL.

AMERICAN FEDERATION OF LABOR

Executive Council
President, WILLIAM GREEN
Secretary-Treasurer, GEORGE MEANY
A. F. of L. Building, Washington, D. C.

First Vice-President, WILLIAM L. HUTCHESON,
Carpenters' Bldg., Indianapolis, Ind.
Second Vice-President, MATTHEW WOLL,
570 Lexington Ave., New York, N. Y.
Third Vice-President, JOSEPH N. WEBER,
621 Alta Drive, Beverly Hills, Los Angeles, Calif.
Fourth Vice-President, O. M. BERRYHILL,
1800 Fifteenth St., N. W., Washington, D. C.
Fifth Vice-President, GEO. M. HARRISON,
Railway Clerks' Bldg., Cincinnati, O.
Sixth Vice-President, DANIEL J. TOBIN,
222 East Michigan St., Indianapolis, Ind.
Seventh Vice-President, HARRY C. BATES,
815 Fifteenth St., N. W., Washington, D. C.
Eighth Vice-President, W. D. MAHON,
11th Floor, 1241 Griswold St., Detroit 26, Mich.
Ninth Vice-President, FELIX H. KNIGHT,
420-422 Carmen's Bldg., Kansas City, Mo.
Tenth Vice-President, W. C. BRUCKHART,
Delaware at Twelfth Street, Indianapolis, Ind.
Eleventh Vice-President, W. C. DOHERTY,
406 A. F. of L. Bldg., Washington, D. C.
Twelfth Vice-President, DAVID DUBINSKY,
1710 Broadway, New York, N. Y.
Thirteenth Vice-President, JOHN L. LEWIS,
United Mine Workers' Bldg., Washington, D. C.

Washington 1, D. C.

Hotel Alcazar,
Miami, Florida,
February 4, 1947.

Mr. W. C. Hushing, Chairman,
Legislative Committee,
American Federation of Labor,
A.F.of L. Bldg., Washington 1, D.C.

Dear Sir and Brother:

I herewith acknowledge receipt of your letter dated January 30th, with the anti-labor bills now pending in Congress, and your analyses and comments thereon, for which please accept my thanks.

Fraternally yours,

Wm Green

President,
American Federation of Labor.

Y

+57

mr. Hushing

THE COMMERCIAL TELEGRAPHERS' UNION
Western Union Division
1315 Linwood Blvd.
Kansas City 3, Mo.

Dispatched from:
Wardman Park Hotel
Washington, D.C.
February 4, 1947

All Officers and Locals, Western Union Division, Commercial Telegraphers' Union, AFL
All International Officers, Commercial Telegraphers' Union, AFL
Executive Council, American Federation of Labor
All International Unions, American Federation of Labor
All Officers and Members International Executive Board, CTU-AFL
Mr. William Green, President, American Federation of Labor
Mr. George Meaney, Secretary-Treasurer, American Federation of Labor
Mr. Robert Watt, International Representative, American Federation of Labor
Mr. Walter Mason, International Representative, American Federation of Labor

This Union decries and condemns with all the vehemence at its command Senate Bill No. 55, known as the "Ball-Taft-Smith Bill". Having read and studied the terms of this bill which we choose to term as a "declaration of war against American Labor", and after full consultation with our general coursel, we submit herewith the observations and opinion of our general counsel, Mr. Frank Bloom, whose findings and opinion we adopt as the policy of this Union.

We request that each of our Local Unions, our International Officers, the Executive Council of the American Federation of Labor, and all International Unions join with us in this protest to the Committee on Labor and Public Welfare of the United States Senate and to each Congressman and Senator composing the Congress of the United States. The viciousness of this bill and its declaration of war on American Labor is a disgrace to its sponsors and if enacted into law will heap calumny upon the august body of the Congress of the United States.

Respectfully submitted,

J. A. Payne
National President,
Western Union Division
Commercial Telegraphers' Union
American Federation of Labor

RECEIVED FEB 6 - 1947

Assume this situation. The leaders of a minority union are discharged for engaging in union activities. The union strikes in protest. Many such strikes have occurred since the passage of the Wagner Act and such striking employees are presently recognized under the law as employees engaged in lawful and proper endeavours. The Supreme Court of the United States has itself so said on many occasions, but under this proposed legislation, although the employer would be guilty of a violation of the Wagner Act and be subject to a cease and desist order from the National Labor Relations Board, the striking employees would find themselves in a federal jail and be required to pay, in addition, a fine up to $5,000. It requires no imagination, but only a memory of what has gone before to visualize what can and will happen. Employer-instigated strikes, through the use of professional spies and missionaries, will result in wholesale jailing of union men and women. True, the employer may after long and wearisome proceedings be slapped on the wrist by a cease and desist order, but this will probably occur about the time that union leaders and their followers will have served a year in jail resulting in lost homes, wrecked families and destroyed savings.

1/(Cont'd) any particular employment, if with respect to the employees or the employment in question such employer is not required under the provisions of the National Labor Relations Act to recognize or bargain with such labor organization.

Nothing contained in clause (1) of this subsection shall be construed to make unlawful a refusal by any person to enter upon the premises of any employer (other than his own employer), if the employees of such employer are engaged in a strike ratified or approved by a representative of such employees whom such employer is required to recognize under the National Labor Relations Act.

(b) Whoever violates the provisions of subsection (a) shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than $5,000 or by imprisonment for not more than one year, or both.

(c) The district courts of the United States shall have jurisdiction in proceedings instituted by or on behalf of the United States, or by any party suffering loss or damage or threatened with loss or damage by reason of any violation of subsection (a), to prevent and restrain violations of such subsection. It shall be the duty of the several district attorneys of the United States, in their respective districts, under the direction of the Attorney General, to institute proceedings to prevent and restrain violations of such subsection.

(d) Whoever shall be injured in his business or property by reason of any violation of subsection (a) may sue therefor in any district court of the United States in the district in which the defendant resides or is found or has an agent, without respect to the amount in controversy, and shall recover threefold the damages by him sustained, and the cost of the suit, including a reasonable attorney's fee.

(e) The provisions of section 6 and 20 of the Act entitled "An Act to supplement existing laws against unlawful restraints and monopolies, and for other purposes", approved October 15, 1914, and the

Or consider this familiar type of situation. A company installs a company dominated union. A bonafide union attempts to organize. Deliberately in violation of the National Labor Relations Act, the conduct of the employer and the company union become intolerable. The union members refuse to continue working under the illegal conditions imposed by the employer and strike in protest. Again, the union men and women who will have merely been exercising their right to refuse to work under the illegal and intolerable conditions created by the employer will find themselves in jail. The wording of Section 204 (a)(2) has been deliberately couched in such vague and entrapping language that even if a Union represented an overwhelming majority of the employees, it might still very easily run afoul of the law. Thus, if a strike should occur and the National Labor Relations Board should find that, in some small degree, the unit claimed by the union was inappropriate, so that a charge of refusal to bargain by the employer would have to be dismissed, the union, despite its overwhelming majority, would find its members threatened with jail sentences. Jail sentences sought, it should be noted, by the Attorney General of the United States. In defense against such possible happenings, a union would hardly resort to a strike unless it had first been certified by the National Labor Relations Board as the exclusive bargaining representative. Now, however, turn to Section 204 (e) and see what happens to even a certified bargaining representative under the provisions of this proposed law.

1/ (e) (Cont'd)

> provisions (except sections 11 and 12) of the Act entitled "An Act to amend the Judicial Code and to define and limit the jurisdiction of courts sitting in equity, and for other purposes", approved March 23, 1932, shall not be applicable in respect of violations of subsection (a), or in respect of any contract, combination, or conspiracy, in restraint of commerce, if one of the purposes of such contract, combination, or conspiracy is to fix prices, allocate customers, restrict production, distribution, or competition, or impose restrictions or conditions upon the purchase, sale, or use of any material, machines, or equipment.

It will be observed immediately that the liberalizing sections 6 and 20 of the Clayton Act, 2/, are no longer applicable to violations of subsection (a) and that the Norris-LaGuardia Act is similarly inapplicable to violations of subsection (a). In addition these statutes are disregarded, "in respect of any contract, combination or conspiracy in restraint of commerce if one of the purposes of such contract, combinations, or conspiracy is to fix prices, allocate customers, restrict production, distribution or competition or impose restrictions or conditions upon the purchase, sale, or use of any material, machines or equipment". Now what does all this language mean? The answer is made crystal clear by examination of several decisions of the Supreme Court of the United States. Ironically enough, several of the decisions which will be reversed, in effect, by this legislation were written by Chief Justice Taft, father of Senator Taft, one of the sponsors of the Ball-Taft-Smith bill.

2/ Sec. 6 of the Clayton Act. That the labor of a human being is not a commodity or article of commerce. Nothing contained in the anti-trust laws shall be construed to forbid the existence and operation of labor, agricultural, or horticultural organizations, instituted for the purposes of mutual help, and not having capital stock or conducted for profit, or to forbid or restrain individual members of such organizations from lawfully carrying out the legitimate objects thereof; nor shall such organizations, or the members thereof, be held or construed to be illegal combinations or conspiracies in restraint of trade, under the anti-trust laws.

Sec. 20 of the Clayton Act. That no restraining order or injunction shall be granted by any court of the United States, or a judge or the judges thereof, in any case between an employer and employees, or between employers and employees, or between employees, or between persons employed and persons seeking employment, involving or growing out of, a dispute concerning terms or conditions of employment, unless necessary to prevent irreparable injury to property, or to a property right, of the party making the application, for which injury there is no adequate remedy at law, and such property or property right must be described with particularity in the application which must be in writing and sworn to by the applicant or by his agent or attorney.

And no such restraining order or injunction shall prohibit any person or persons, whether singly or in concert, from terminating any relation of employment, or from ceasing to perform any work or labor, or from recommending, advising, or persuading others by peaceful means so to do; or from attending at any place where any such person or persons may lawfully be, for the purpose of peacefully obtaining or communicating information or from peacefully persuading any person to work or to abstain from working; or from recommending, advising or persuading others by peaceful and lawful means so to do; or from paying or giving to, or withholding from, any person engaged in such dispute, any strike benefits or other moneys or things of value; or from peaceably assembling in a lawful manner, and for lawful purposes; or from doing any act or thing which might lawfully be done in the abence of such dispute by any party thereto; nor shall any of the acts specified in this paragraph be considered or held to be violations of any law of the United States.

And in conclusion:

"We concur with the dissenting judge in the Circuit Court of Appeals when, in speaking of the Conclusion of the Majority, he said:

The natural, logical and inevitable result will be that every strike in any industry or even in any single factory will be within the Sherman Act and subject to federal jurisdiction provided any appreciable amount of its product enters into interstate commerce."

Note particularly that it is sufficient if one of the purposes is to "restrict production". This becomes of particular importance in connection with the famous Apex case decided by the Supreme Court in 1940 (310 U.S. 469). In that case, sit-down strikers seized a plant, refused access to the plant by the owners, even to the extent of refusing permission to enter and ship finished products to the value of $800,000. Clearly the strikers had engaged in wanton and lawless conduct. The Supreme Court started from this premise. But the question was whether or not such conduct, illegal as it was conceded to be, brought the Union within the Sherman Act. The Court held that it did not, reversing a treble damages verdict for $711,932.55. Thus said Justice Stone, for the majority of the Court:

"Concededly the purpose of the strikers and their principal objective was to compel petitioners to yield to their demands for a union shop, but it is a matter of common knowledge and experience that the stoppage of a large manufacturing plant, which the strikers did intend, whose product is distributed generally to consumers throughout the country, would prevent its shipments in interstate commerce."

The Court here recognized the distinction between primary intent and objectives, and the secondary or inevitable intent present in every strike to limit or restrict production. If the secondary intent be sufficient, then, as the Supreme Court points out in the Herkort, Apex cases, every strike would be illegal. And that, obviously is the clear intent of the Ball-Taft-Smith Bill - to bar strikes entirely.

After a review of the cases, Mr. Justice Stone says further:

"Underlying and implicit in all of them is recognition that the Sherman Act was not enacted to police interstate transportation, or to afford a remedy for wrongs, which are actionable under state law, and result from constrictions and conspiracies which fall short, both in their purpose and effect, of any form of market control of a commodity, such as to "monopolize the supply, control its price, or discriminate between its would-be purchasers." These elements of restraint of trade --- are wholly lacking here: - We only hold now, as we have previously held in both labor and non-labor cases, that such restraints are not within the Sherman Act unless they are intended to have, or in fact have, the effect on the market on which the Court relied to establish violation in the second Coronado Case ---

If, although such effect on the market, we were to hold that a local factory strike, through picketing and stoppage of its product interests, violates the Sherman Law, practically every strike in modern industry would be brought within the jurisdiction of the federal courts, under the Sherman Act, to surely local law violations. The Act was plainly not intended to reach such a result, the language does not require it, and, the course of our decision previous it.'

Even the requirement of an unreasonable restraint upon interstate commerce, declared necessary in the Standard Oil case in 1911, is no longer applicable. To the contrary, it is enough if one of the purposes - in fact, an inevitable purpose in every strike - is to 'restrict production', in no matter how slight a degree. If that one inevitable purpose be present, the union, its officers, representatives and members, will face injunctions, treble damage suits, and criminal prosecution. Truly an unhappy prospect for Americans who may desire only to assert their constitutional right to strike.

The excerpts quoted above make it clear that the Supreme Court has fashioned a formula, the 'market control test', to decide what union activities come within the prohibitions of the Sherman Act, and basis in this formula is the requirement that there be a primary intent to violate the Act by attempting to control the price, monopolize supply or stifle competition, etc. But now the Sherman Act will have been violated ' if one of the purposes of such contract, combination or conspiracy ---' can be shown to have been present. The 'market control test' will have been discarded. No longer need it be the basic purpose, nor further, need there even be a showing that there would be a substantial interference with interstate commerce. If this bill had been law when the first Coronado case, the Hutcheson case and the Apex case were decided, the Supreme Court would necessarily have reached contrary results and great numbers of strikers would have been imprisoned and fined.

It is not enough that Section 204, as has been shown, eliminates the right to strike. In passing, the authors of the bill have incorporated into the statutory law the doctrines of Duplex versus Deering (254 U.S. 443) and the Bedford Cut stone case (274 U.S. 37) which were, as the Supreme Court pointed out, in the Hutcheson case a few years ago, virtually sapped of their effectiveness by the Norris-LaGuardia Act of 1932. The Bedford Case, was, to quote Frankfurter and Greene (The Labor Injunction) a situation involving 'simple refusal to work upon stone which had been partly cut at the quarries by men working in opposition to the association'. In his powerful dissent in that case, Mr. Justice Brandeis pointed out the dangerous proximity of the decision to the legalizing of involuntary servitude and yet, even these hated and long since repudiated doctrines have been dragged out of their smelly and evil closets to become once more a menace to American workers.

We have just won a great military victory, but the spirits of Hitler and Mussolini must be laughing today ---

AMERICAN FEDERATION OF LABOR
A. F. of L. Building
Washington 1, D.C.

February, 1947

SUMMARY OF PENDING LABOR LEGISLATION

OMNIBUS BILLS

S.55 -- Ball(R. Minn.) Taft(R. Ohio) and Smith(R. N.J.)

Settlement of disputes: Creates Federal Mediation Board within Department of Labor to be mediation agency, supplanting U. S. Conciliation Service; jurisdiction of the Board includes all disputes "affecting commerce;" forbids strikes and lockouts for 60 days after Board's proffer of services under penalty of NLRB cease and desist order for employers and loss of NLRA rights for employees.

Amendment to National Labor Relations Act: Would exclude supervisors very broadly defined, from the definition of "Employees" under the NLRA.

Payments by employers to unions: Makes unlawful payments by employers to unions, with certain exceptions not including the check-off; sets standards which must be met by any health and welfare fund before any employer payments under it can be lawful.

Union contracts: Renders unions suable for breach of contract; provides forfeiture of NLRA rights by employees striking in violation of contract.

Registration of unions: Requires filing of two statements by each "labor organization" before it can be eligible for certification by NLRB; these statements to include information on dues and fees, selection of officers and agents, names and addresses of all employers with whom union has collective agreements, financial statement for most recent fiscal year, and statement that such financial statement has been furnished to all members of the labor organization.

Boycotts and illegal strikes: Prohibits and penalizes(1) secondary boycotts and (2) strikes to compel recognition of union or employment of its members when employer is not required to do so under NLRA; provides penalty of $5000 or year in jail and permits employers, suffering or threatened with loss or damage under this section, to sue for triple damages in federal courts.

S.404 -- Ellender (D. La.)

Settlement of disputes: Creates Federal Mediation Board of five members within the Department of Labor to supplant U. S. Conciliation Service; requires all collective bargaining agreements to include provision for 60-day notice to change or terminate contract by either party; during 60-day waiting period no strike or lockout is permitted under penalty of NLRB order for employers and loss of NLRA rights for employees; provides for fact-finding "emergency commissions" in the event of an unsettled dispute affecting "essential industry"; further waiting period (maximum of 30 days) during which commission makes its report; commission's recommendations to be confined to wages, hours, and working conditions although its report may "describe" other issues in dispute; penalties for non-compliance with waiting period and further obligation by employers and officers of labor unions to "take appropriate affirmative action" to terminate any lockout or strike.

Amendments to National Labor Relations Act; Would exclude supervisors very broadly defined from employees under the Act; would insert free speech proviso.

Union contracts: Renders unions suable for breach of contract in federal courts; provides for forfeiture of NLRA rights by employees striking in violation of contract.

AMERICAN FEDERATION OF LABOR
A. F. of L. Building
Washington 1, D.C.

February, 1947

SUMMARY OF PENDING LABOR LEGISLATION

There is attached a summary of the most important labor legislation pending before the 80th Congress.

This listing does not claim to be complete, but it does include the major legislative proposals which were introduced during January, 1947.

A total of 38 bills is summarized. They are classified according to the primary subject with which they are concerned, under the following categories:

Subject	Number of Bills
Omnibus Bills (Those covering a wide variety of topics)	3
Settlement of Disputes	7
Amendments to National Labor Relations Act	9
Industry-Wide Bargaining	1
Union Security	6
Enforcement of Union Contracts	1
Registration of Unions	2
Secondary Boycotts and Illegal Strikes	2
Conduct of Strikes and Picketing	1
Studies and Investigations	6
Total	38

It should be noted that several of the specific topics are also included in the three omnibus bills. For example, each of these bills contains sections relating to the NLRA, the enforcement of union contracts, registration of unions, secondary boycotts, and illegal strikes.

The following legislators have introduced more than one bill:

Legislator	Bills Introduced
Senator O'Daniel (D. Texas)	4 - Amending NLRA 1 - Repealing NLRA 2 - Union Security 1 - Strikes and Picketing
Congressman Hoffman (R.Mich.)	2 - Amending NLRA 1 - Settlement of Disputes 1 - Union Security 1 - Secondary Boycott
Senator Ball (R. Minn.)	1 - Omnibus (with Senators Taft and Smith) 1 - Union Security 1 - Industry-Wide Bargaining 1 - Amending NLRA

Other legislators who have introduced more than one bill are Congressman Miller (R. Nebr.), Congressman Landis (R. Ind.), Congressman Case (R. S.Dak.), Congressman Smith (R. Maine), Congressman Smith (D. Va.), and Senator Byrd (D. Va.).

AMERICAN FEDERATION OF LABOR
A. F. of L. Building
Washington 1, D. C.

February, 1947

SUMMARY OF PENDING LABOR LEGISLATION

There is attached a summary of the most important labor legislation pending before the 80th Congress.

This listing does not claim to be complete, but it does include the major legislative proposals which were introduced during January, 1947.

A total of 38 bills is summarized. They are classified according to the primary subject with which they are concerned, under the following categories:

Subject	Number of Bills
Omnibus Bills (Those covering a wide variety of topics).	3
Settlement of Disputes.	7
Amendments to National Labor Relations Act	9
Industry-Wide Bargaining.	1
Union Security	6
Enforcement of Union Contracts.	1
Registration of Unions.	2
Secondary Boycotts and Illegal Strikes.	2
Conduct of Strikes and Picketing.	1
Studies and Investigations	6
Total	38

It should be noted that several of the specific topics are also included in the three omnibus bills. For example, each of these bills contains sections relating to the NLRA, the enforcement of union contracts, registration of unions, secondary boycotts, and illegal strikes.

The following legislators have introduced more than one bill:

Legislator	Bills Introduced
Senator O'Daniel (D. Texas)	4 - Amending NLRA 1 - Repealing NLRA 2 - Union Security 1 - Strikes and Picketing
Congressman Hoffman (R.Mich.)	2 - Amending NLRA 1 - Settlement of Disputes 1 - Union Security 1 - Secondary Boycott
Senator Ball (R. Minn.)	1 - Omnibus (with Senators Taft and Smith) 1 - Union Security 1 - Industry-Wide Bargaining 1 - Amending NLRA

Other legislators who have introduced more than one bill are Congressman Miller (R. Nebr.), Congressman Landis (R. Ind.), Congressman Case (R. S.Dak.), Congressman Smith (R. Maine), Congressman Smith (D. Va.), and Senator Byrd (D. Va.).

Financial statements by unions: Requires financial statements by all unions, both local and national under penalty of loss of rights under NLRA.

Boycotts and illegal strikes: Prohibits and penalizes secondary boycotts and strikes to compel recognition of union when employer is not required to do so under NLRA; provides penalty of $5000 or year in jail and permits employers injured by such action to sue for triple damages in federal court.

H.R.725 -- Case (R. S.Dak.)

Settlement of disputes: Establishes Industrial Disputes Commission to assume functions of U. S. Conciliation Service; forbids strikes or lockouts for 60 days following Commission's proffer of services in any dispute affecting commerce; encourages arbitration of disputes and creates special panel of arbitrators; authorizes creation of emergency commissions in disputes affecting public welfare and makes report of commission's binding when accepted by(1) the parties or(2) the employees voting by secret ballot in an election conducted by NLRB.

Amendments to National Labor Relations Act: Adds unfair labor practices by unions including interference with or use of violence toward any employee, sitdown strikes, obstructive picketing, withdrawal of essential maintenance employees, striking without approval of employees in secret ballot, and refusal to bargain with employer; limits to one year period of disqualification of labor organization because of employer domination; extends employer freedom of speech and right to petition for election; conditions collective bargaining by employer associations and appropriateness of multiple employer units upon the consent of the employers concerned; restricts bargaining rights of supervisors to independent unions whose membership is restricted to supervisors; provides loss of bargaining and reemployment rights for engaging in violent picketing, secondary boycotts, jurisdictional, and sympathy strikes, and striking in violation of the law; adds two members to NLRB.

Union contracts: Authorizes civil suits in federal courts by employers or unions for breach of contract.

Registration of unions: Requires annual registration with, and annual report to, Department of Labor, including financial statement and names of all employers with whom union has collective agreements.

Boycotts and illegal strikes: Authorizes injunctions to prohibit secondary boycotts, jurisdictional and sympathy strikes.

Political contributions: Bans political contributions by unions and corporations.

Closed shop: Asserts that prohibition of closed shop contracts (including union shop and maintenance of membership) by individual states may not be impaired by federal law.

SETTLEMENT OF DISPUTES

S.73 -- Morse (R. Ore.)

Creates five-man Federal Mediation Board, independent of the Department of Labor, to assume functions of U. S. Conciliation Service; functions of the Board are to encourage the making and maintenance of collective agreements and to assist parties to settle labor disputes through conciliation and mediation; Board is directed to seek to induce disputants voluntarily to submit disputes to arbitration if agreement cannot be reached by other peaceful means.

H.R. 17 -- Auchincloss (R. N.J.)

Creates Labor Disputes Conciliation Administration in lieu of Conciliation Service to conciliate disputes affecting public interest; forbids strikes or lockouts in such disputes if President declares emergency; authorizes injunctions for enforcement; requires President to appoint arbitrator within 45 days thereafter, if dispute is not

settled, to make binding award.

H.R.54 -- Case (R. N.J.); H.R.68 -- Hale (R. Me.); H.R.75 -- Heselton (R. Mass.); H.R.76 -- Herter (R. Mass.)

Similar to H.R.17.

H.R.85 -- Hoffman (R. Mich.)

Provides that all labor contracts with public utility shall include 60-day cooling-off period after written notice of intent to strike, and provides that, in event of strikes in violation thereof, NLRA rights be withdrawn from both individual employees and union for period of 12 months; terminates tenure of strikers after 24 hours.

H.R.288 -- Miller (R. Neb.)

Provides for Presidential appointment of emergency commissions to investigate and recommend basis for settlement of specific disputes arising in essential industries and public utilities whose rates are set by governmental agencies; prohibits strikes and lockouts and requires acceptance of commission recommendations; provides, in case of violation by either party for loss of all rights under Federal labor relations laws and for loss of employee status and seniority by strikers.

H.R.301 -- Smith (R. Maine)

Provides statutory basis for Conciliation Service; requires employers and unions to endeavor to make and keep agreements providing for arbitration of disputes; forbids changes in status for 60 days (90 days for public utilities) after Conciliation Service intervenes under penalty of desist order from NLRB for employers and forfeiture of rights under NLRA by employees; authorizes President to appoint emergency commissions to report on disputes in public utilities and freezes status quo up to 15 days after commission reports.

H.R.302 -- Smith (R. Maine)

Empowers President, after proclamation, to seize industries essential to public welfare when interruption due to labor dispute occurs or is threatened; requires labor-management cooperation after proclamation; permits Attorney General to petition for temporary injunctive relief without regard to Norris-LaGuardia Act; deprives employees who fail to comply with proclamation of rights under NLRA or Railway Labor Act; permits Senate and House to revoke proclamation by concurrent resolution.

H.R.1095 -- Landis (R. Ind.)

Restricts applicability of NLRA, Stabilization Act of 1942, and all other federal laws regulating labor relations to enterprises conducted for private gain whose productive facilities lie within jurisdiction of police power of two or more states, or which are now subject to federal license or regulation by FPC or ICC. Provides for compulsory submission to arbitration board of disputes on proclamation, by President and Secretary of Labor or President and state Governor, that dispute threatens national health or safety, and requires preservation of status quo except for mutually agreed changes, for period up to 60 days after fifth day following proclamation; permits employers or employees to reject board's decision, but rejection by employees' representative must be ratified by majority vote of all employees involved; authorizes President, after proclamation naming, if possible, party responsible for nonsettlement, to seize plants in case of (1) rejection of award, (2) refusal to preserve status quo, or (3) refusal to submit dispute to board. Provides for just compensation to plant owners during seizure, and for monthly accounting under government operation, and for return of property to owners upon settlement of dispute, acceptance of board's decision, after 60 days of nonprofitable government

settled, to make binding award.

H.R.34 -- Case (R. N.J.); H.R.68 -- Hale (R. Me.); H.R.75 -- Hazelton (R. Mass.); H.R.76 -- Herter (R. Mass.)

Similar to H.R.17.

H.R.85 -- Hoffman (R. Mich.)

Provides that all labor contracts with public utility shall include 60-day cooling-off period after written notice of intent to strike, and provides that, in event of strikes in violation thereof, NLRA rights be withdrawn from both individual employees and union for period of 12 months; terminates tenure of strikers after 24 hours.

H.R.258 -- Miller (R. Neb.)

Provides for Presidential appointment of emergency commissions to investigate and recommend basis for settlement of specific disputes arising in essential industries and public utilities whose rates are set by governmental agencies; prohibits strikes and lockouts and requires acceptance of commission recommendations; provides, in case of violation by either party for loss of all rights under Federal labor relations laws and for loss of employee status and seniority by strikers.

H.R.301 -- Smith (R. Maine)

Provides statutory basis for Conciliation Service; requires employers and unions to endeavor to make and keep agreements providing for arbitration of disputes; forbids changes in status for 60 days (90 days for public utilities) after Conciliation Service intervenes under penalty of desist order from NLRB for employers and forfeiture of rights under NLRA by employees; authorizes President to appoint emergency commissions to report on disputes in public utilities and freezes status quo up to 15 days after commission reports.

H.R.302 -- Smith (R. Maine)

Empowers President, after proclamation, to seize industries essential to public welfare when interruption due to labor dispute occurs or is threatened; requires labor-management cooperation after proclamation; permits Attorney General to petition for temporary injunctive relief without regard to Norris-LaGuardia Act; deprives employees who fail to comply with proclamation of rights under NLRA or Railway Labor Act; permits Senate and House to revoke proclamation by concurrent resolution.

H.R.1095 -- Landis (R. Ind.)

Restricts applicability of NLRA, Stabilization Act of 1942, and all other federal laws regulating labor relations to enterprises conducted for private gain whose productive facilities lie within jurisdiction of police power of two or more states, or which are now subject to federal license or regulation by FPC or ICC. Provides for compulsory submission to arbitration board of disputes on proclamation, by President and Secretary of Labor or President and state Governor, that dispute threatens national health or safety, and requires preservation of status quo except for mutually agreed changes, for period up to 60 days after fifth day following proclamation; permits employers or employees to reject board's decision, but rejection by employees' representative must be ratified by majority vote of all employees involved; authorizes President, after proclamation naming, if possible, party responsible for nonsettlement, to seize plants in case of (1) rejection of award, (2) refusal to preserve status quo, or (3) refusal to submit dispute to board. Provides for just compensation to plant owners during seizure, and for monthly accounting under government operation, and for return of property to owners upon settlement of dispute, acceptance of board's decision, after 60 days of nonprofitable government

operation with maintenance of status and parties further arbitration, or period of one year from date of award. Provides loss of employee status under NLRA for employees at plant property held by government for more than 60 days if seizure has been proclaimed employer responsibility, and for subsequent retention of profits if management has contributed policy. Establishes panel of five federal arbitrators, one of whom shall be chairman of five-man arbitration board prescribed, with employer and employee representative each selecting two other members.

AMENDMENTS TO NATIONAL LABOR RELATIONS ACT

S.120 -- O'Daniel (D. Texas)

Authorizes an employer subject to NLRA to express his opinion concerning any matter affecting relationship between him and his employees, or his opinion and preferences concerning labor organizations seeking right to represent his employees, if he does not threaten to deprive his employees of any rights secured by law.

S.121 -- O'Daniel (D. Texas)

Denies reinstatement or back pay under NLRA to employees who engaged in violence in connection with any labor dispute or effort to organize. Permits employer to reject as collective bargaining agency any person or organization guilty of foregoing acts.

S.122 -- O'Daniel (D. Texas)

Extends NLRA to include within purview of "unfair labor practices" labor organizations, their officers, members or employees, and all other persons.

S.123 -- O'Daniel (D. Texas)

Insures employer's right to express his opinion and preferences, if unaccompanied by coercion, concerning any labor organization seeking right to represent his employees and any other matter affecting employment relationship; denies rights under NLRA for one year to individuals and organizations which NLRB finds to have encouraged, promoted, or authorized use of force or violence in labor disputes; renders unions liable for damages arising from strikes in violation of contract; also prohibits labor organizations, their officers, representatives, or members from making contracts or engaging in combinations or conspiracies in restraint of commerce and punishes violation by fine up to $5000 or year's imprisonment or both.

S.124 -- O'Daniel (D. Texas)

Repeals NLRA.

S.360 -- Ball (R. Minn.)

Makes sweeping changes in NLRA; separates the investigatory and prosecutory powers of the NLRB and transfers them to the Department of Justice; excludes supervisors, very broadly defined, from the definition of employees; denies protection of the act to strikers who have been "replaced" or who have "refused an offer of reinstatement to substantially equivalent employment"; establishes two unfair labor practices for labor organizations, to "interfere with, restrain, or coerce" employees and to refuse to bargain collectively; "bargain collectively" is redefined not to require the making of a counter proposal; adds free speech proviso; eliminates closed shop proviso; allows individual adjustment of grievances so long as adjustment does not violate contract; prohibits collective bargaining units of more than the single plant unless each plant selects the same representative; prohibits units of both professional and non-professional employees; prohibits denial of craft unit on grounds of previous Board determination; allows employers to file for election; allows court review of certification cases; declares unlawful strikes (1) to compel employer to bargain collectively with union not certified

an representative of his employer, (2) to "unfair practice for which an administrative remedy is available under the Act", or (3) to violate a provision of the Act or "some other law of the United States"; remover these categories of strikes from coverage of Norris-LaGuardia anti-injunction act.

H.R.8 -- Smith (D. Va.)

Designed as a substitute for the present National Labor Relations Act, but includes several questions not related to the activities of the NLRB; amends NLRA to vest prosecutory functions in Administrator and judiciary functions in Board; deletes closed-shop proviso from provisions defining unfair labor practices of employers; forbids as unfair labor practices of employees or unions obstructive picketing or nonemployee picketing, secondary boycotts, failure by unions to register and submit financial reports, supporting strikes against public utilities, mines, or plants essential to health or safety, exerting economic pressure to force hiring of unnecessary employees or extort payments by force or threats; assigns representation procedures to Board but withholds authority to establish unit if two or more unions disagree on scope; empowers federal district courts to enjoin threatened violations and permits damage suits for violations; penalizes violations by loss of rights under Act and under federal relief or unemployment compensation laws; withdraws status of labor organization from unions violating Act or continuing in office officers who have violated Act; makes breach of collective contract ground for damage suit; requires agreement between public utilities and unions to ban strikes and lockouts, breach of agreements being subject to injunctions.

H.R.90 -- Hoffman (R.Mich.)

Suspends National Labor Relations Act as to unions and employees engaged in strikes which have impaired or threaten to impair public welfare for the duration of the strike; upon complaint by employer that his Constitutional rights are infringed or upon complaint by employer or public official that a strike injuriously affects interstate commerce or the public welfare, any court may, upon affirmative finding by jury, suspend the NLRA in respect to the parties in dispute until the strike has been settled or the suspended operation resumed.

H.R.880 -- Hoffman (R. Mich.)

Repeals NLRA and writes new act following same structure. Supplants NLRB by National Labor Mediation Board with power to mediate disputes; requires filing of strike notice and forbids strikes for six months in disputes affecting public welfare and for 30 days in other disputes; defines agricultural labor, excluded from coverage, more broadly than it has been defined by NLRB, and limits applicability of act to businesses having at least 50 percent of sales in interstate commerce. Adds "right to work" provision; protects employer's free speech; defines unfair labor practices to include compulsory checkoff, coercion of employees by unions, or strikes in violation of contract or prohibited by act; permits discharge of employees who have committed unfair practices; prohibits obstruction of free movement of goods or participation in jurisdictional or sympathy strikes under criminal penalties; excludes foremen from employee status for purposes of act; amends election procedure; requires unions to register with NLMB as condition of certification.

H.R.1096 -- Landis (R. Ind.)

Amends NLRA to add refusal to bargain by union to unfair labor practices, and excludes from unfair labor practices any employer statement which does not, standing alone, constitute interference or coercion. Provides for loss of employee status under NLRA for participants in (1) jurisdictional or sympathy strikes or (2) strikes in violation of contract if strike is not approved by labor organization party to contract; permits petition for election to be initiated by any employee, employer, or labor organization at any time.

UNION CONTRACTS

H.R.287 -- Miller (R. Neb.)

Makes labor contracts binding and enforceable against both parties and provides for damage suit in federal district court in case of breach.

REGISTRATION OF UNIONS

S.10 -- O'Mahoney (D. Wyo.)

Requires every corporation, trade association, and labor union engaged in commerce to obtain certificate of statutory compliance with certain national standards, upon filing certified copy of its charter.

S.J.Res.8 -- Byrd (D. Va.)

Requires labor organizations to incorporate and register with Securities and Exchange Commission, giving Commission prescribed information, financial statements, copy of its articles of incorporation and of its by-laws. In case of breach of employment contract or damage to employer's property, provides for loss of union's status under NLRA in matters relating to the employees of such employer.

H.J.Res.43 -- Smith (R. Maine)

Companion to S.J.Res. 8.

BOYCOTTS

H.R.87 -- Hoffman (R. Mich.)

Prohibits secondary boycott and jurisdictional strikes against carriers of property for hire; violation by labor organization entails loss of rights under NLRA and criminal penalties.

H.R. 266 -- Miller (R. Neb.)

Forbids labor organizations to order sympathy or jurisdictional strikes or secondary boycotts and provides criminal penalties.

STRIKES AND PICKETING

S.119 -- O'Daniel (D. Texas)

Prohibits the use of force, violence, or threats, in assembling near any place where a labor dispute exists, to prevent any person from engaging in any lawful business or occupation, with penalty of imprisonment for violation.

STUDIES AND INVESTIGATIONS

S.Res. 29 -- Lucas (D. Ill.)

Directs Senate Committee on Labor and Public Welfare to study administration and operation of federal labor laws, labor disputes, welfare plans, and related issues including the organization and administration of unions and the effect upon labor relations of the concentration of power in the hands of any individuals.

S.J.Res. 22 -- Murray (D. Mont.), Wagner (D. N.Y.), Thomas (D. Utah), Pepper (D. Fla.), Green (D. R.I.), Myers (D. Pa.), McGrath (D. R.I.), Taylor (D. Idaho) and Kilgore (D. W.Va.)

Creates Temporary Labor Relations Commission composed of Senators, Representatives, and spokesmen for labor, management, and the public to study labor disputes, welfare plans, and related issues, including an investigation of union, employer, and government policies and

INDUSTRY - WIDE BARGAINING

S.133 -- Ball (R. Minn.)

States that the policy of the government is that collective bargaining "should be confined to geographical areas small enough so that all employees and employers concerned will be able to participate directly in the determination of bargaining policies"; amends NLRA to make it an unfair labor practice for unions to act as representative for employees in more than one plant unless plants are in the same labor market area; makes it unlawful for any parent labor organization (national union or national federation) to "include or seek the inclusion in any collective bargaining agreement of any particular terms or provisions"; authorizes enforcement by injunctions, issuable by federal district courts.

UNION SECURITY

S.71 -- Byrd (D. Va.)

Prohibits closed shop under criminal penalties and repeals closed-shop proviso of NLRA.

S.105 -- Ball (R. Minn.)

Makes unlawful all forms of union security including so-called closed shop, union shop, and maintenance of membership, as well as "yellow-dog" contracts (already illegal through Norris-LaGuardia Act) in all industries affecting commerce; any contract embodying these conditions of employment is declared unlawful and unenforceable in any court of the United States; any person making, enforcing, or seeking to obtain or to enforce such contract terms is guilty of a misdemeanor; repeals closed-shop proviso in NLRA.

S.161 -- O'Daniel (D. Texas)

Amends Fair Labor Standards Act to prohibit employers and government contractors from entering into or enforcing an agreement which discriminates against any person for reason of membership or non-membership in a labor organization; punishes violation by $5000 fine or year in jail or both.

S.J.23 -- O'Daniel (D. Texas)

Amends Constitution to provide that no person shall be denied employment because of present or past membership in labor union nor because of refusal to join union. No person shall be compelled to pay dues to any labor organization as condition of employment.

H.R.86 -- Hoffman (R. Mich.)

Establishes national policy protecting right to work and makes it unlawful (1) to force any person to belong to labor organization (2) refrain from employment or to interfere with an employee while going to or from employment, if such would interfere with commerce.

H.R.122 -- Miller (R. Neb.)

Provides that no person shall be denied employment because of present or past membership in, or for refusal to join, a labor organization; bars closed shop and checking off of union dues and fees; provides criminal penalties.

promotion, with emphasis on training of participants to assume
vital responsibility.

H.Res.16 -- Hunt (R. NJ.)

Directs House Education and Labor Committee to investigate working conditions and means of promoting safety to guard workers and insurance provided to guard welfare.

H.Res. 20 -- Smith (R. Maine)

Directs House Committee on Labor to investigate all federal agencies dealing with labor matters and requires report including recommendations on advisability of consolidating all federal labor agencies under one authority.

H.Con.Res.6 -- Smith (D. Va.)

Directs joint congressional committee of seven from each House to study and report recommendations on existing and pending labor legislation and on whole field of labor relations.

H.Con.Res.11 -- Case (R. S.Dak.)

Directs House and Senate Education and Labor committees to investigate all factors affecting mining and distribution of coal with emphasis on the conditions of work.

MEMORANDUM

To: President Green
From: W. C. Hushing
Date: February 27, 1947

The attached release by Congressman Landis was given me yesterday in advance.

I am reliably advised that the 16 points in it will be the bill reported by the House Labor Committee.

I have arranged to sit in and help write the minority report on the bill, which will be necessary, and have asked Attorney Kaiser to sit in with me at the proper time.

Is this O.K?

Okd by Green
Pass
with Mrs Thone
President Meeting
2/27/47

Release Tuesday Feb. 25, 1947 Gerald T. Landis, M. C., Indiana

NECESSARY LABOR LEGISLATION

Mr. Landis. Mr. Speaker, as a member of the House Labor Committee for the past eight years, I wish to discuss at this time the important matter of labor-management relations and what I believe are necessary amendments to prevent strikes. It is the duty of Congress to remove the evils and racketeering in the field of labor-management relations and still protect labors' rights. Following are amendments I believe should be adopted by both Houses of Congress.

1. Jurisdictional Strike. This means a strike growing out of a dispute between two or more representatives of employees. This strike must be outlawed because innocent employers should not be penalized because unions force a strike to settle difficulties between unions. The mine or factory should continue operating during jurisdictional disputes between unions.

2. Breach of Contract or Wild-cat Strikes. Unions that sign contracts should be liable for violation of such collective bargaining contracts if the right of collective bargaining and the right to strike mean anything.

3. Employers' Right of Free Speech. One of the most important amendments to the Wagner Act is the employers' right of free speech. In the first place there was no intention of Congress to deny this right to anyone because the right of free speech is guaranteed to all of our citizens in the first amendment of the Constitution.

4. Secondary Boycotts. Secondary boycotts engaged in by labor unions to force a third party, not a party to a primary labor dispute, to force that party to cease using the products of the employer engaged in the primary dispute is an activity which should be made illegal. Secondary boycotts have had the effect of throwing a great many innocent people out of work. As a result of these secondary boycotts many of our citizens have been deprived of the deliveries of milk, bread, meat and other essentials of life. These boycotts have cost the nation millions of dollars worth of foodstuffs.

5. Strike Vote. In order to give the rank-and-file of labor a right to participate in collective bargaining, they should have the right of the secret ballot (State election laws) to vote on the final proposal arrived at by collective bargaining before a strike is called.

6. Equalize Collective Bargaining. In order to have successful bargaining it will be necessary to require that both management and labor participate in collective bargaining.

7. Picketing should be limited to the members of the local union involved in a strike. There is a provision in the Wagner Act which gives workers a right

to join a union or not to join. Employees have the right under the act to petition the National Labor Relations Board for an election to decide if they want to join a union and name the particular union with which they wish to be affiliated. Mass picketing must be abolished.

8. The employer should have the right to petition for an election to determine a question of collective bargaining representation.

9. No foreman or supervisor selected by management should be forced to belong to a labor union. He should be given the right to join or not to join any labor union he chooses.

10. No laboring man should be forced to join a labor union to gain a livelihood.

11. An improved method of mediation and voluntary arbitration of disputes.

12. A 30 day collective bargaining period, prior to the expiration of a contract, is essential. Of course, both the employers and employees should be required to bargain collectively during this period.

13. No subversive individual should be allowed to hold an office in a labor union or corporation.

14. A new federal labor court should be set up to judge cases such as wildcat strikes.

15. A federal law is necessary to stop violence and destruction of property.

16. Some form of Federal seizure is necessary to prevent strikes in industry-wide plants which affect public health and safety.

Mr. Speaker, Labor leaders will probably call these harsh and punitive measures, but these amendments will be necessary to create better labor and management relations and eliminate labor racketeering. Labor still has the right to strike but the rank and file of labor will have the right of a secret ballot to accept or reject any compromise measure mady by management in a labor dispute. Labor will still have the right to bargain on a local plant level or on an industry-wide basis. They will still have the right to the check-off from members through collective bargaining. Wages, safety measures, welfare and etc will be left to collective bargaining.

No one should condone jurisdictional and wildcat strikes, secondary boycotts and violence and destruction of property. The first amendment of the Constitution guarantees everyone the right of free speech. If we are allowed to take this right away from one group, there may come a time when an administration in power would want to take this right away from all groups.

No one would surely deny a person the right to work or even force him to buy certificate in order to work. No one would surely deny the rank and file of the orkers the privelege of a secret strike ballot. The rank and file of labor are xious to remove subversive leaders from their organizations.

Our big job is to protect the public from unions who have misused their power we must be careful not to restore the abuses of the past on the part of the loyers.

Mr. Hutchings

file

February 3, 1947

Mr. Patrick J. Fitzgerald, Secretary
Local #10, National Federation of Post Office Clerks
206 West 23rd Street
New York 11, New York

Dear Sir and Brother:

I acknowledge receipt of your letter dated January 24 in which you advise me of a motion adopted at a meeting of the New York office of Post Office Clerks Local #10. Be assured the recommendations made by the New York Federation of Post Office Clerks #10 will be given careful thought and consideration.

Fraternally yours,

President
American Federation of Labor

ams

RHE
OPEIU #2

H. BRUCE FRANKLIN

Mr. William R. Smith, Representative,
International Brotherhood of Paper Makers,
30 Sheridan Avenue,
Albany, 1, New York.

Dear Sir and Brother:

Replying to your communication of January 31, I have sent you thirty-five copies of the letter which we addressed to the National and International Unions, Departments of the American Federation of Labor, State Federations, City Central Bodies and Federal Labor Unions, under date of January 17, in regard to assistance needed to oppose vicious anti-labor legislation.

Trusting these copies reached your office promptly, and with best wishes, I am

Fraternally yours,

H. Bruce Franklin

President,
American Federation of Labor.

RECEIVED FEB 12 1947

IHE
OEIU #2

H. BRUCE FRANKLIN
935 EAST 13TH STREET
BROOKLYN 30, NEW YORK

1/8/47

American Federation of Labor
1440 Broadway
N.Y., N.Y.

Dear Sirs,

-Would you kindly send me any literature you have expressing your views of restrictive labor legislation.

Yours truly,
H. Bruce Franklin

HBF:mjk

RECEIVED FEB 12 1947

1643 Franklin Street, NE.
Washington 18, D.C.
February 9, 1947

American Federation of Labor,
901 Massachusetts Avenue, N.W.,
Washington, D.C.

GENTLEMEN:

Please send me any comments you have regarding:
"whether or not congress should pass legislation outlawing strikes"

I have the negative side in a debate at school and would appreciate any data that you may have available.

Thanking you in advance for your assistance, I am

Yours Truly,
John W. Taylor Jr.

RECEIVED FEB 11 1947

ADDRESS ALL COMMUNICATIONS TO
67 GAY STREET
STAMFORD, CONNECTICUT

MEETING NIGHTS:
FIRST AND THIRD FRIDAY
OF EACH MONTH

Stamford Central Labor Union

Affiliated with American Federation of Labor and Connecticut Federation of Labor

February 10, 1947

RECEIVED
FEB 14 1947

Mr. William Green, Pres.
American Federation of Labor
A. F. of L. Building
Washington 1, D. C.

Dear Sir and Brother:

Following is a copy of a letter sent to the Congressmen from our district.

"The Stamford Central Labor Union and its affiliated unions at their last business meeting voted action to inform you that drastic anti-labor legislation be considered very thoroughly by you before voting.

The working people of this country have labored very hard in past years to bring about a better standard of living for everyone concerned. We know that these gains by labor were not made for selfish purposes, but were made with the intent of bettering all peoples. Under the United States Constitution we are a free people. Let us not forget that some of the actions being promoted by some members of the Eightieth Congress do not seem to conform to our Constitution.

Much of the strife between Labor and Management has not been caused merely because our laws have not been properly enacted but because the human relationship between employer and employee has been lost.

Many of our troubles could be solved if those in responsible positions would see the inequalities in living conditions.

We ask and urge you to vote favorably for Labor.

As laboring people we cherish this great Country of ours. We have proved ourselves in the past and will continue to do so in the future."

Fraternally yours,

Stephen H. Colosi

STEPHEN H. COLOSI, SEC.
STAMFORD CENTRAL LABOR UNION

SHC/ez
c.c. to
Joseph M. Rourke

Mr Rhoades

AMERICAN FEDERATION OF LABOR

WILLIAM GREEN, PRESIDENT
GEORGE MEANY, SECRETARY-TREASURER

E. P. THEISS, ORGANIZER
7777 NORTH GRAND BOULEVARD
ST. LOUIS, MO.

February 11, 1947

RECEIVED
FEB 14 1947

Mr. William Green, President,
American Federation of Labor,
A. F. of L. Building,
Washington, D. C.

Dear Sir and Brother:

This is to acknowledge receipt of your circular letter dated January 17, 1947 which was addressed to the Organizers of the American Federation of Labor and which dealt with a request from your office that we extend every effort possible to have our various affiliates and their membership wire or write their respective Senators and Representatives of the U. S. Congress requesting them to resist the passage and adoption of various anti-labor bills.

You may rest assured that this request shall be carried out by all organizers attached to this office.

With very best wishes and kindest personal regards, I am

Fraternally yours,

E. P. Theiss

E. P. Theiss, Organizer,
American Federation of Labor

EPT:MB

MEMORANDUM

To: President Green
From: W. C. Hushing
Date: February 12, 1947

On yesterday Mr. McCann, Attorney for the House Committee on Education and Labor, phoned me and advised that President Whitney of the Railroad Trainmen, was scheduled to testify on the labor bills before the Committee on February 25, President Murray of the CIO on the 26th, and you on the 27th. I told him in no uncertain terms that this was absolutely unsatisfactory and these arrangements would have to be changed, and while he said this was not in accordance with instructions from the Chairman he finally agreed not to notify anyone that they were to be heard on the above mentioned dates.

I went over this morning to the House Caucus Room where the Committee on Education and Labor was holding hearings and called Chairman Hartley out of the chair and he readily agreed that you were to be the first witness for labor and said he had so instructed Mr. McCann yesterday, after my conversation with the latter, as Mr. McCann had taken the matter up with him. You are, therefore, to appear on Wednesday, February 26, 1947 at 10:00 a.m. in the House Caucus Room which is on the third floor, front of the Old House Office Building.

The Committee would like to have 76 copies of your brief and 76 copies of a summary of the brief on Saturday, February 22, and not later than February 24. You are to be given the entire day, but I told them unless the Committee dragged it out you could probably finish by 12:30 noon.

H.R. 8 by Mr. Smith of Virginia
H.R. 85, by Mr. Hoffman
H.R. 86, by Mr. Hoffman
H.R. 87, by Mr. Hoffman
H.R. 90, by Mr. Hoffman
H.R. 122, by Mr. Hoffman
H.R. 266, by Mr. Miller of Nebraska
H.R. 267, by Mr. Miller of Nebraska
H.R. 268, by Mr. Miller of Nebraska
H.R. 725, by Mr. Case of South Dakota
H.R. 880, by Mr. Hoffman
H.R. 1095, by Mr. Landis
H.R. 1096, by Mr. Landis
H.R. 1430, by Mr. Wood

February 13, 1947

Enclosed herewith is a copy of report on Bills of interest to one of our affiliated unions of Cement, Lime & Gypsum Workers, Local 101, Devil's Slide, Utah.

We would appreciate an analyses of these bills by the American Federation and what position they are in the House or Senate, so we may be able to make contacts with our representatives and senators accordingly.

We would like to have this information just as soon as possible.

With best wishes,

Fraternally yours,

J. R. Wilson, Secretary-Treasurer,
Utah State Federation of Labor

[illegible]

Utah State Federation of Labor

151 South 2nd East, Salt Lake City, Utah

[illegible]

February 12, 1947

2/17/47
Mr. Stuhmy

Mr. George Meany, Secretary,
American Federation of Labor,
A. F. of L. Building,
Washington 1, D. C.

Dear Sir and Brother:

Enclosed herewith is a copy of report on Bills submitted by one of our affiliated unions of Cement, Lime & Gypsum Workers, Local 101, Devil's Slide, Utah.

We would appreciate an analyses of these bills by the American Federation and what position they are in the House or Senate, so we may be able to make contacts with our representatives and senators accordingly.

We would like to have this information just as soon as possible.

With best wishes,

Fraternally yours,

J. R. Wilson, Secretary-Treasurer,
Utah State Federation of Labor

(Enc.)
JRW/gmb

31

RECEIVED FEB 17 1947

(COPY)

UNITED CEMENT, LIME AND GYPSUM WORKERS
INTERNATIONAL UNION
Local No. 101

Devil's Slide, Utah. Feb. 5, 1947

Mr. W. I. Love,
President, Ogden Trades and Labor Assembly
Labor Temple,
Ogden, Utah

Dear Sir and Brother:

I have read the Bills that you gave me for study in last meeting. In going over them I find that they are all HOT and there are a few that should be attended to at once.

H.R. 85, introduced by Mr. Hoffman, is a direct slap at any Union and the N.L.R.A.

H.R. 86, introduced by Mr. Hoffman, is a bill against the closed shop and every Union.

H.R. 122, introduced by Mr. Miller, is against the closed and Union shop, check-off and even goes so far as to try to prevent any Union from having a contract with any employer. This Bill should be taken up and fought nationally.

H.R. 1194, introduced by Mr. Hoffman, is a slap at fair standards Act; also H. R. 1041 by Mr. Fernandez, this type of Bill a Union would have to hire a legal staff to recover any wages.

S. 327, by Wherry, is a slap at the N.L.R.A. and the closed shop. Very anti-labor.

S. 360, by Mr. Bell, is to ammend or render useless the present N.L.R.A. I cannot understand all the changes, becuase I don't have the N. L. R. A., but I can assure you that the changes proposed in this bill are not for the good of labor.

S. 4014, by Mr. Ellender, is a Bill to change the Mediation Board from the Labor Dept. to be appointed by the President and Congress. This Bill may look OK from the outside, but would xx put all disputes on trial with the Justice Dept. and would surely work to the advantage of the Employers thru politics.

I contacted Mr. Wilde on these Bills and in going over them together he advised that I get my report into you at once so you could take action.

In summing up H.R. 86-122 and S.327-S. 360-S. 404 are the worst. Will give more complete report at meeting.

Fraternally yours,

(S) Clarke M. Lucas
Recording Secretary

RECEIVED FEB 17 1947

February 13, 1947

Mr. Hunter Warton, Secretary
Building Trades
608 House Building
Pittsburgh, Pennsylvania

Dear Sir and Brother:

In compliance with your long-distance request I transmit herewith a copy of the analyses of anti-labor bills now pending before Congress.

Fraternally yours,

W. C. Hushing, Chairman
National Legislative Committee
American Federation of Labor

S
oeiu-2
enc.

February 14, 1947

Honorable John A. Carroll, M.C.
Room 344 House Office Building
Washington, D. C.

My dear Congressman:

In compliance with the request of Mr. E. L. Doyle, I transmit herewith a copy of the analyses of the anti-labor bills now pending before Congress.

Sincerely,

W. C. Hushing, Chairman
National Legislative Committee
American Federation of Labor

IHE:S
ceiu-2
Encl. enc.

February 17, 1947

Mr. Harry B. Houtzoim
Washington Hotel
Washington, D. C.

My dear Mr. Houtzoim:

On Saturday I furnished you with a list of the Committee assignments of both the Senate and the House, as well as copies of the anti-labor bills which have been introduced in this session of Congress and the analyses thereof. I am enclosing copy of the Legislative Reorganization Act of 1946 - Public Law No. 601 of the 79th Congress, all of which were requested by you and President Hutcheson.

With best wishes, I am

Sincerely yours,

W. C. Mushing, Chairman
Nat[illegible] Legislative Committee
[illegible]ederation of Labor

February 18, 1947

Mr. H. Bruce Franklin,
935 East 13th Street,
Brooklyn 30, New York.

Dear Sir:

Replying to your letter of February 8th regarding our views on restrictive labor legislation, I am sending you under separate cover a copy of the statement filed by President Green before the Senate Committee on Labor and Public Welfare, today.

Very truly yours,

Secretary-Treasurer,
American Federation of Labor.

IHE
OEIU #2

OFFICERS
LEO KRZYCKI • Vice Presidents: PROF. J. J. ZMRHAL • ZLATKO BALOKOVIC • Secretary: STEPHEN ZEMAN, JR.
Secretary: GEORGE PIRINSKY • Treasurer: MARTIN KRASICH • Financial Secretary: STEVE KRALL • Membership
Advisors: GYORGE BUBAN, Croatian • ZARKO DUNCICK, Serbian • DANIEL KASIUTUSHIK, Russian • VINCENT CAINKAR,
• CHARLES M. PECHAL, Czech • JOSEPH HELLMUTH, Polish • V. S. PLAYEK, Slovak • PETER BATELA, Carpatho
• DR. V. SHAFENRAHT, Ukrainian • PROF. J. TARASEVICH, O.S.B., Byelorussian • MUHAMMED KRATQU, Ukrainian
SMEALE VOYDANOFF, Bulgarian • Youth Panel: CAROL PIJAN • Labor Panel: IVAN SOBCHAK

American Slav Congress

National Executive Office

205 East 42nd Street, New York 17, N. Y. · MUrray Hill 4-7090

February 18, 1947

Mr. William Green, President
American Federation of Labor
American Federation of Labor Building
Washington, D.C.

RECEIVED
FEB 19 1947

Dear Mr. Green:

The National Committee of American Slav Congress at its meeting in Pittsburgh February 15-16, 1947, reviewed with deep concern the unprecedented drive of tory Republicans and poll-tax Democrats in Congress to wipe out the gains of American toilers made in the past several decades. We are fully convinced that this attack, embodied primarily in the 212 anti-labor bills now before Congress, if successful, would not only destroy the hard-won gains of labor but threatens the basic democratic rights of all the American people.

The National Committee, therefore, has called upon all Slavic Americans, the vast majority of whom are working people and members of trade unions, to rally their forces through their organizations and together with organized labor and all liberal and progressive groups to mobilize to stem this threatening tide.

We greet your far-sighted efforts to speed united action on the part of all labor bodies. Unity of organized labor in this critical hour is the surest guarantee that labor gains will be maintained and strengthened. On our part, we shall do all in our power to back the struggles of labor with everything at our command.

Very truly yours,

Leo Krzycki

Leo Krzycki, President

George Pirinsky

George Pirinsky, Executive Secretary

OFFICERS

ent: LEO KRZYCKI • *Vice-Presidents:* PROF. J. J. ZMRHAL • ZLATKO BALOKOVIC • *Secretary:* STEPHEN ZEMAN, JR.
ive Secretary: GEORGE PIRINSKY • *Treasurer:* MARTIN KRASICH • *Financial Secretary:* STEVE KRALL • *Nationality*
esidents: GEORGE BUBAN, *Croatian* • ZARKO BUNCICK, *Serbian* • DANIEL KASUSTCHIK, *Russian* • VINCENT CAINKAR,
an • CHARLES M. PRCHAL, *Czech* • JOSEPH HELLMUTH, *Polish* • V. S. PLATEK, *Slovak* • PETER RATICA, *Carpatho-*
• DR. V. SHARENKOFF, *Bulgarian* • PROF. J. TARASEVICH, O.S.B., *Byelorussian* • MICHAEL TKATCH, *Ukrainian*
SMEALE VOYDANOFF, *Macedonian* • *Youth Panel:* CAROL FIJAN • *Labor Panel:* JOHN SOBCZAK

6237 So. Bishop St.
Chicago, Ill.
2-19-47

Mr. William Green;

Dear Honorable Sir;

Because leaders of the Democratic party began to use management and labor as mere political pawns to realize personal and party gain, and because a Democratic Congress did not hold in contempt Soviet aggression, the nature of which anticipated a world communist state, our citizen voters elected a Republican majority to the Congress. I supported this Mandate of Nov. 5th.

Now I am aware of th fact as you also doubtless are, that some egocentric Republican statesmen are placing a false interpretation on this mandate. Their intentions seem to be to secure their own fortunes and the exaggerated property rights of a special group. You know that plans are being formulated to enact a radical 'Anti labor' bill.

you must immediately warn all labor organizations and every one in sympathy with the labor movement of the immense social and sinister portent of the many sweepings of this anti-labor block.

Sudden death legislation is in the making. If the closed shop is outlawed, all the magnificient gains labor has made in the age of labor progress will have been destroyed. They who seek to stifle the labor movement fully realize the psycological advantage of immediate action.

Beat them to the punch.

I respectfully suggest that you invite the President of the Congress of Industrial Organization to participate with you in a nation wide broadcast in which both of you gentlemen will make an eloquent appeal to right and reason regarding the mighty issue of adopting new labor laws.

to their respective Congressmen and request a square deal for labor. They must be told just how serious this life and death struggle is and that labor just has to fight back.

My deep interest in the welfare and progress of the labor movement prompts me to write and speak in its' defense at all times. There is cause for alarm now.

I shall convey these sentiments to the Honorable Mr. Phillip Murray for his worthy Consideration

Respectfully Yours;
John P. Healy.
6237 S Bishop St.
Chicago, Ill.

P.S. Have just read Robt Tafts' remarks which insult your intelligence. When you hit back - hit Hard. Remember the will of the world's most well informed citizens will not be disregarded by Congress.

National Presidium
BERT GOLDSTEIN
BLANCHE MOCH
DVORAH ROTHBARD
National Treasurer
SONIA LEHR

National Executive
LEAH BROWN
SARA CAISERMAN,
Montreal, Canada
ESTHER CHAGY
IDA EHRENREICH
SARA FEDER
Columbia, Mo.
MIRIAM GINGOLD,
Chicago, Ill.
SHOSHANA GOLDMAN,
Minneapolis, Minn.
SARA KAHN
ROSE KAUFMAN,
Cleveland, Ohio
MYRIAM KUBOWITZKI
CLARA LEFF
RAY LEVITT
DUNIA MARGULIS
BATIA NIGER
ANNA SCHLOSSBERG
MARIE SYRKIN
RIVKAH WOLL
RACHELLE YARDEN

Regional Representatives
Northeastern Seaboard
EVA BERG,
Stanfordville, N. Y.
Southeastern Seaboard
MOLLIE HORVITZ,
Washington, D. C.
East Central
FANNY ORKIN,
Cleveland, Ohio
South Central
ESTHER IDA SCHMIDT,
Cincinnati, Ohio
Midwest
ETHEL BERGER,
St. Louis, Mo.
Southwestern
PEARL EBERSTEIN
Dallas, Texas
Western Canada
BRACHA FRIEDMAN,
Winnipeg, Man.
Eastern Canada
IDA KRAKOWER,
Toronto, Ont.

PIONEER WOMEN

THE WOMENS' LABOR ZIONIST ORGANIZATION OF AMERICA
מרייען בּאָוועגונג פֿאַר די חלוצות אין ארץ ישראל
45 EAST 17th STREET AL. 4-2194 NEW YORK 3, N. Y.

February 21, 1947

Director, Legislative Department
American Federation of Labor
National Office
Washington, D.C.

Dear Sir:

The Pioneer Women's Organization has in the past several years been actively interested in the national legislative activity. Among the legislation specifically relating to labor which we have endorsed includes the Fair Employment Practice and minimum wage.

Now we are anxious to defeat any legislation directed against unions and endorse that which you would favor. Will you be good enough to send us your statement of policy on federal labor legislation as well as any specific recommendations that you may now have or have in the near future.

The Pioneer Women's Organization with more than 300 clubs in all parts of the United States has a positive interest in the problems of labor and want to assure you of our cooperation in reference to any legislative recommendations favorable to labor.

Your prompt reply to the below listed home address will be appreciated by the National Executive of the Pioneer Women's Organization.

Yours respectfully,

Dr. Sara Feder, Chairman
National Committee on
Social Legislation and
Community Affairs.

Home Address:
904 Hillcrest
Columbia, Missouri

file

February 21, 1947

Mr. Leo Krzycki, President
Mr. George Pirinsky, Executive Secretary
American Slav Congress
205 East 42nd Street
New York 17, N. Y.

Dear Sirs:

I appreciate your letter dated February 18th and I am happy to note that the American Slav Congress has called upon its members to support labor in its opposition to the enactment of anti-labor legislation by the Congress of the United States.

We are united in our opposition to this anti-labor legislation. Be assured it is our purpose to do all that lies within our power to defeat it.

Very truly yours,

President,
American Federation of Labor

ds

CLASS OF SERVICE

This is a full-rate Telegram or Cablegram unless its deferred character is indicated by a suitable symbol above or preceding the address.

WESTERN UNION

NEWCOMB CARLTON, PRESIDENT

SYMBOLS

DL = Day Letter

NL = Night Letter

LC = Deferred Cable

NLT = Cable Night Letter

Ship Radiogram

The filing time shown in the date line on telegrams and day letters is STANDARD TIME at point of origin. Time of receipt is STANDARD TIME at point of destination

RECEIVED FEB 24 1947

1947 FEB 21 PM 8 54

YA14

Y.NP398 NL PD=NEWPORT NEWS VIR 21

WILLIAM GREEN=

PRESIDENT AMERICAN FEDERATION OF LABOR WASHDC=

STATEWIDE CAMPAIGN BEING INAUGARATED TO COMBAT ANTI-LABOR LEGISLATION IN CONGRESS PLEASE FURNISH ME IMMEDIATELY WITH LIST OF SENATORS AND REPRESENTATIVE WHO HAVE VOTED FAVORABLY ON LABOR LEGISLATION FOR MAILING PURPOSES=

M H WHITESELL PRESIDENT LOCAN #353 ITU 4573

WASHINGTON AVE NEWPORTNEWS VIRGINIA.

#353 ITU 4573..

THE COMPANY WILL APPRECIATE SUGGESTIONS FROM ITS PATRONS CONCERNING ITS SERVICE

Account of merican Federation of Labor. $

WESTERN UNION

1106

A. N. WILLIAMS
PRESIDENT

DEFERRED CABLE	
ORDINARY	
URGENT RATE	
DEFERRED	
NIGHT LETTER	
NIGHT LETTER	

Patrons should check class of service desired; otherwise the message will be transmitted as a telegram or ordinary cablegram.

CHECK

ACCOUNTING INFORMATION

TIME FILED

Send the following telegram, subject to the terms on back hereof, which are hereby agreed to

February 24, 1947

FOR VICTORY
BUY
WAR BONDS
TODAY

M. H. Whitesell, President
Local 353 ITU
4573 Washington Avenue,
Newport News Virginia.

RETEL YOUR APPEAL SHOULD BE DIRECTED TO ALL MEMBERS OF U. S. CONGRESS FROM YOUR STATE REGARDLESS OF THEIR ATTITUDE TOWARD LABOR. STATE FEDERATION AND CENTRAL LABOR UNIONS HAVE THEIR RECORDS.

WILLIAM GREEN

INTERNATIONAL PRESIDENT
W. L. ALLEN
5913 GEORGIA AVENUE
WASHINGTON 11, D. C.

INTERNATIONAL VICE-PRESIDENT
ADOLPH BRUNGS
5913 GEORGIA AVENUE
WASHINGTON 11, D. C.

INTERNATIONAL SECRETARY-TREASURER
RICHARD D. HALLETT
5913 GEORGIA AVENUE
WASHINGTON 11, D. C.

EDITOR AND STATISTICIAN
FRANK B. POWERS
5913 GEORGIA AVENUE
WASHINGTON 11, D. C.

ORGANIZED 1902

The Commercial Telegraphers' Union

AFFILIATED WITH
AMERICAN FEDERATION OF LABOR
THE TRADES AND LABOR CONGRESS OF CANADA
NATIONAL WOMEN'S TRADE UNION LEAGUE OF AMERICA

5913 GEORGIA AVENUE, WASHINGTON 11, D. C.
TELEPHONE TAYLOR 1195

INTERNATIONAL EXECUTIVE BOARD
G. R. PAWSON, CHAIRMAN
17 MACDONNELL AVENUE, TORONTO 9, ONT.
JOHN B. ALCORN, SECRETARY
19617 HOLMUR DETROIT 21, MICH.
W. V. McEWEN
139 DOUGLAS PARK ROAD, ST. JAMES, MAN.
HARRY S. LEIMBACH
4919 3RD STREET, S. E., WASHINGTON 32, D. C.
J. A. PAYNE
1319 LINWOOD BLVD., KANSAS CITY 3, MO.
JOSEPH J. LENAHAN
150 NASSAU ST., RM 2035, NEW YORK 7, N. Y.
BEN HOLLAND
512 NINTH AVENUE W., BIRMINGHAM 4, ALA.
J. N. A. BLOUIN
19 CLOVELLY AVENUE TORONTO 15, ONT.
H. G. STEINBRENNER
2225 N. SPRINGFIELD AVENUE, CHICAGO 47, ILL.
CLARENCE LIMERICK
3647 BEECHER ST., N. W., WASHINGTON 7, D. C
OBERT MOI
607 LOWMAN BLDG., SEATTLE, WASH.

RECEIVED
FEB 27 1947

February 24, 1947

Mr. Wm. Green, President
American Federation of Labor
Washington, D. C.

Dear President Green:

For your information I am attaching a copy of a letter which I addressed individually to each Senator and Congressman relative to proposed labor legislation.

With best wishes.

Sincerely and fraternally yours

W. L. Allen.

W.L. ALLEN
International President

WLA:oc
oeiu:2

NATIONAL PRESIDENT
W. L. ALLEN
5913 GEORGIA AVENUE
WASHINGTON 11, D. C.

NATIONAL VICE-PRESIDENT
ADOLPH BRUNGS
5913 GEORGIA AVENUE
WASHINGTON 11, D. C.

INTERNATIONAL SECRETARY-TREASURER
RICHARD D. HALLETT
5913 GEORGIA AVENUE
WASHINGTON 11, D. C.

EDITOR AND STATISTICIAN
FRANK B. POWERS
5913 GEORGIA AVENUE
WASHINGTON 11, D. C.

ORGANIZED 1902

The Commercial Telegraphers' Union

AFFILIATED WITH
AMERICAN FEDERATION OF LABOR
THE TRADES AND LABOR CONGRESS OF CANADA
NATIONAL WOMEN'S TRADE UNION LEAGUE OF AMERICA

5913 GEORGIA AVENUE, WASHINGTON 11, D. C.
TELEPHONE TAYLOR 1193

February 22, 1947

INTERNATIONAL EXECUTIVE BOARD
G. R. PAWSON, CHAIRMAN
19 MACDONNELL AVENUE, TORONTO 9, ONT.
JOHN B. ALCORN, SECRETARY
1931½ HOLMUR DETROIT ST., MICH.
W. V. McEWEN
105 DOUGLAS PARK ROAD, ST. JAMES, MAN.
HARRY B. LEIMBACH
1918 2ND STREET, S. E., WASHINGTON 20, D. C.
J. A. PAYNE
1918 LINWOOD BLVD., KANSAS CITY 9, MO.
JOSEPH J. LENAHAN
100 HARRIS ST., NW. 2081, NEW YORK 7, N. Y.
BEN HOLLAND
815 NINTH AVENUE W., BIRMINGHAM 4, ALA.
J. N. A. BLOUIN
19 CLOVELLY AVENUE TORONTO 13, ONT.
H. G. STEINBRENNER
3939 N. SPRINGFIELD AVENUE, CHICAGO 47, ILL.
CLARENCE LIMERICK
3847 BRECHER ST., N. W., WASHINGTON 7, D. C.
OBERT MOI
307 LOWMAN BLDG., SEATTLE, WASH.

The Commercial Telegraphers' Union, AFL, representing 50,000 communications workers in the United States is gravely concerned over the present agitation to rush through drastic legislation to "curb" Labor. Obviously this agitation stems from the series of strikes and lockouts which occurred last year, but it is also receiving the encouragement and support of all of the labor-hating, anti-union individuals and groups in the country who favor such legislation irrespective of whether or not it is warranted.

The strikes and lockouts of last year were the result of dislocations in the immediate post-war period which were abnormal beyond any previous experience. They were to be expected, if not inevitable, following the most devastating war in all history. The most remarkable thing about them is that they were not more serious. They offer no justifiable basis for the proposed legislation.

Labor legislation pending before Congress, particularly the "Ball-Taft-Smith Bill", would deprive Labor of the right to strike and create a new widespread system of Government controls as a substitute for free and genuine collective bargaining. We believe that is the road to chaos, more and more Government controls, eventual totalitarianism.

Perhaps some "corrective" legislation may be necessary. Labor's responsibilities have increased tremendously with greatly expanded organization in the past decade, perhaps to a much greater extent than many of us in Labor realize. We must fully recognize and assume these responsibilities and discharge their attendant obligations for the good of the Nation. We want to do so. We do not want to be deprived of that opportunity and right by "punitive" legislation.

We believe the logical solution to this problem is that proposed by President Truman: a patient, exhaustive study of the problems involved to determine intelligently what if any legislation is necessary. That would be the practical, realistic approach.

The hearings presently being held on proposed legislation offer nothing constructive to the problem. Those appearing for and against are necessarily on the defensive. Time permits only brief general statements and testimony that is naturally prejudiced. The relative issues involved are not being developed.

We believe the only way to get at the root of the problem is for representatives of Government, Management and Labor to sit down together, dispassionately and calmly, and with open minds examine minutely and conscientiously all of the many phases of the problem, endeavor to agree on what should be done and submit their recommendations accordingly. Industrial strife is almost negligible. Labor and Management generally are showing a sincere desire to cope with their mutual problems through earnest and peaceful collective bargaining. It is a good time to launch such a study.

If we must have labor legislation let it be based upon a proper study of all of the issues to insure that it will be fair and reasonable. Hurried legislation based on hysteria and prejudice, in our humble opinion, is not the answer and will not work.

MEANWHILE, UNTIL SUCH A STUDY HAS BEEN MADE, WE APPEAL TO YOU TO VOTE AGAINST ALL PROPOSED LABOR LEGISLATION.

We believe the record of this Union justifies this appeal. This Union has had Union Shop agreements with the leading Press Associations for 42 years. We have never called a strike against these employers. Union Shop or Maintenance of Membership provisions are incorporated in all of our agreements with employers in the United States. Final and binding arbitration is provided for all interpretations of agreement which are arbitrable. With few exceptions voluntary arbitration is provided for disputes which can not be resolved in collective bargaining during revision of agreements, the decisions of the arbitrators being subject to acceptance or rejection by the parties. We have not called a strike since 1935. We have had only two strikes in the past 20 years, involving fewer than 400 employes, yet our wage and contract agreements are among the best in the country.

Respectfully and sincerely yours

W.L. Allen.

W.L. ALLEN
International President

WLA:oc

February 26, 1947

Mr. W. W. Martello, Secretary,
Kenosha Trades and Labor Council,
3500 - 22d Avenue,
Kenosha, Wisconsin.

Dear Sir and Brother:

Your communication of the 19th was just received by this office.

Approximately eighty anti-labor bills have been introduced thus far in this session of Congress, and since this office receives only three copies of each, it is impossible to supply the demands made for them. We are, however, sending you under separate cover copy of a statement of President Green before the Senate Committee on Labor and Public Welfare, as well as copies of the bills referred to therein.

If you will furnish us with the numbers of any of the bills in which you are particularly interested, we will be glad to endeavor to supply you with copies.

Fraternally yours,

Secretary-Treasurer,
American Federation of Labor.

IHE
OEIU #2

the very outset let me challenge the ve

more and more to develop a deep sense of human responsibility to enlarge it.

FROM: OFFICE OF THE CHAIRMAN
HOUSE COMMITTEE ON EDUCATION AND LABOR

HIGHLIGHTS OF TESTIMONY BEFORE HOUSE COMMITTEE
ON EDUCATION AND LABOR, BY WILLIAM GREEN,
PRESIDENT OF THE AMERICAN FEDERATION OF LABOR,
WEDNESDAY, A. M., FEBRUARY 26.

Following delivery of a prepared statement before the House Committee on education and labor today, (Wed.) William Green, President of the American Federation of Labor, emphatically expressed himself as opposed to any legislation designed by the present Congress in bills introduced to date that would change the status quo, enumerating his opposition to bills that would outlaw the union shop, prohibit boycotts, illegalize dues check-offs, provide for 'cooling-off' periods, make it unlawful to call "minority strikes; 'compel registration and financial accounting of labor organizations, outlaw jurisdictional strikes, separate the functions of N.L.R.B. through amendment of the Wagner Act, establish compulsory arbitration, or to make it an unfair practice for Labor unions to interfere with the rights of employees to self organization and designation of representatives.

After persistent questioning by Representative Hoffman of Michigan which at times seemed to infuriate the witness, Mr. Green finally admitted his willingness for the Wagner Act to be amended to the extent granting free speech to employers, and his "not too serious" objection to registration and financial accounting by unions. "At last," said Hoffman, "we're getting some place. You are actually admitting that you consent to something being done legislatively."

Prior to this grudging admission that he might accept mild labor legislation along these lines, Green had declared that "none of the suggested bills are any good." Asked for his recommendation on legislation concerning jurisdictional strikes Green shouted "Congress can't outlaw jurisdictional strikes. It can't be done and I'm not going to ask you to do the impossible."

Hoffman asked Green what he recalled concerning collection of initiation fees of $50.00 from close to 20,000 workers on the construction of Camp Blanding by a carpenters' union whose total membership was around 250 when construction began. Green couldn't recall this but was reminded that he was questioned on this situation by a Senate committee in 1943 and had promised to check up on it. However, while promising to check on the Camp Blanding situation again, Green declared that 'if the union in question was a closed shop they had a perfect right to charge $50 or whatever their initiation fee was to anybody joining the union."

The witness told Hoffman that "you're setting up a hypothetical case". 'Certainly not,' snapped Hoffman. "It's very much a realistic case and its all a matter of disappointing record."

Mr. Hoffman asked the AF of L chieftain 'where would the unions today -- all of them -- be if the great unorganized mass of workers refused to buy the goods manufactured and produced by union workers and bearing union labels?' Green replied that 'the unions would get along very well indeed, and they are going to get along. And as for the union label, that is simply a guarantee that a product hasn't been produced under sweatshop conditions."

"How about a law," queried Hoffman, "that would entitle any man to a job, union or no-union...the simple right to work without molestation by any union, group or individual?'

'Such a law can't work," shouted Mr. Green, by now apparently very angry. "You're on the wrong track, You'll never get any place with that sort of thinking or law-making."

"Then how," cam back the Michigan Member, "can we ever have full employment if a man is debarred from work by closed shop conditions, to which AF of L President Green retorted, 'all proposed legislation along this line is no good, and I want you to know that all labor is beginni

more and more to develop a deep sense of hatred of attempts to enslave it.

On the subject of secondary boycotts Representative Gerald W. Landis, of Indiana, asked Mr. Green if he felt that picketing of a restaurant whose employees refused to join a union is justified? If such unions which break their contract are entitled to any of the guarantees and protection of the Wagner Act and should not the Wagner Act rights be withdrawn from unions staging wild cat strikes; and if legal protection should not be established for the "innocent employer who becomes the victim of jurisdictional disputes."

These are all matters which labor itself can and will work out Green averred, but that cannot be solved through legislation. He justified secondary boycotts as something labor hopes and desires to solve, but which in many cases, as things stand now, must occur to "raise standards and maintain high standards." To the suggestion of Landis that "something should and must be done to legislate against boycotts," after referring to refusal of truckmen to deliver perishable foodstuffs as well as staples in many communities, Green insisted that "these are isolated cases, "which drew from the Indiana member the rejoinder, "Oh, no they're not. They're far from isolated. We've had such complaints from all over the United States, and they've been highly publicized. Even you must have heard of many more than "isolated" complaints."

On wildcat strikes Green saw no need for any action by Congress for, he observed, "that's taken care of already. Many of our contracts have anti-wildcat strike provisions that provide much stiffer penalties for violation than you would care impose in legislation."

On jurisdictional strikes Mr. Green was equally firm as to the place of any action by Congress. "You can't deal with this problem successfully through legislation. Labor is trying to work this out."

At the start of his prepared testimony Mr. Green had said: "at

the very outset let us challenge the very basis on which this legislation has been presented to the country."

Representative Van Zandt, Pennsylvania, referring this remark, "you challenge every bill that has been introduced and every consideration of this Committee, up until now, as regarding the situation that we are trying to correct. If you think that new legislation is not necessary, how do you propose to correct the chaos that we have out here, day after day and listened to, and about which we are receiving thousands of letters, daily complaining of lawlessness, violence, the increasing number of strikes and industrial disturbances, and making frequent and pointed reference to the millions of man-days of idleness in 1946?"

To which Green replied, "These complaints are not coming from the 65 to 75 million working men and their families and friends. They are coming from labor baiters, inspired by labor-hating columnists, radio commentators, editorial writers and editors, and even our enemies in Congress are now turning on us as never before. But labor's friends are not demanding any new labor laws or any changes in the labor laws, and by labor's friends I mean upwards of 65 million workers, their relatives and friends. Public opinion is not represented in these complaints. They represent but a minority opinion, inflamed by reactionary commentators and enemies of labor."

Mr. Hoffman interrupted at this point to observe that "the minority of those who feel that no new labor legislation or alteration of legislation now on the statute books is unnecessary certainly expressed itself in a very funny way in November. We thought it was the majority speaking."

COPY

Gwinn Admits Issuing Release Green Assailed

The mysterious question of who issued a House Labor Committee news release that angered AFL President Green was solved last night by "confession" of Representative Gwinn (R.), of New York.

The release was a resume of Green's testimony before the committee in respect to labor legislation. Referring to Green, it used such terms as "grudging admission," "seemed to infuriate" and "apparently angry."

Reporter Wrote Release

It was distributed to newsmen by a committee employe yesterday. But no sooner had the demand exhausted the supply, than the committee and its paid staff began disclaiming responsibility for it.

Green said he would protest in writing to the committee. Representative Hartley (R.), of New Jersey, speculated that some committee member might have tossed out the canard for publicity purposes.

Representative Hoffman (R.), of Michigan, offered first to bet a $10 sack of peanuts that the committee staff put it out.

Later, Hoffman said the release was a "routine" matter and that he didn't see any news value in it.

Then Gwinn came forward with a statement that a newspaper reporter had written the release at his request and had submitted it to Hartley's office but Hartley had no opportunity to see it prior to distribution.

Refers Green to Transcript

Gwinn said authorship is "beside the point" because the release was factually correct. He added:

"I, for one, feel that any factually correct information that may be given to the people through the nation's press as to the testimony, attitudes and demeanor of leaders of the 'House of Labor,' as they want to be called, is all to the good."

He declared that Green, instead of writing a letter of protest, "might do well to examine the transcript of his answers to various questions. The transcript reveals he was very angry, indeed."

The Representative said the Labor Committee, of which he is a member, has under consideration his proposal to issue twice-a-day summaries of testimonies to the press.

Did

WHAT R
stock has
is almost visu
types of "Won
the co-ed on h
Gossip at Mayfa
poser herself typ
American woman
Clare Luce or "amb
worker." To her on
worst things in the
idleness.

She personally pain
blouses, glassware, trays
chests, as well as on ca
She designs and builds hats
plays the piano when she
not writing music.

Furthermore, she takes car
of a husband.

Belle Fenstock in real life is Mrs. Joseph C. Brown. (Joseph C. Brown in real life is more often called "Brownie," and is executive manager of the Washington bureau of M.-G.-M.'s newsreel.) But long before she married "Brownie" she had built up a reputation as Belle Fenstock, and in music she still h

She is a small person, dark-haired, dar
she doesn't put on weight even though a
she wants. Currently she is writing a co
orchestra, putting together a hat somethin
miniature Lincoln Memorial impaled on a m
Monument, and painting modernistic designs
not already glorified.

"Be an Angel," one of her songs, was feat
show at a certain downtown hotel (seven letter
ends with R) recently.

Belle Fenstock, born in New York April 21, 191
the piano at 3. She went to New York schools and
then studied at the Art Student's League.

At 17 she met George Gershwin. She had painted a
him from a picture and sent it to him. He liked it, me
her, and began talking her out of art and into music.

She first hit Tin Pan Alley in 1936 with "Simple Sir
Simple Sue," an effort she remembers as "just another
After that she then ground them out fairly regularly. Pretty
she met Billy Rose. The next thing she knew she had wr
"Strangers in the Dark," theme song for his aquacade at
Cleveland Great Lakes Exposition of 1938.

After that she turned to more specialized music and concen
trated on modern instrumental, descriptive pieces such as the
"American Rhapsody," a symphonic work, written in 1944, which
she feels is her best, to date.

In 1942 she came to Washington as experimental camouflagist for the War Department. She met and married "Brownie" here.

Brown and Miss Fenstock now live at the Broadmoor. When not composing, painting, or playing the piano she likes to walk, go to movies, concerts and plays, travel, and take pictures.

—JOHN WHITE

Tomorrow look for . . . Cledo Brunetti

(13)

WESTERN UNION

JOSEPH L. EGAN
PRESIDENT

SYMBOLS
DL = Day Letter
NL = Night Letter
LC = Deferred Cable
NLT = Cable Night Letter
Ship Radiogram

The time used is shown in the date line on telegrams and day letters is STANDARD TIME at point of origin. Time of receipt is STANDARD TIME at point of destination

WV17 PD=WASHINGTON DC 27 959A

WILLIAM GREEN=

PRESIDENT AMERICAN FEDERATION OF LABOR=

RECEIVED
FEB 27 1947

IN MY OPINION SOMETHING SHOULD BE DONE TO PREVENT SENATE AND HOUSE LABOR COMMITTEES FROM FREEZING OUT BONAFIDE REPRESENTATIVES OF OUR UNIONS WHO HAVE MADE APPLICATIONS IN AMPLE TIME TO APPEAR BEFORE THESE COMMITTEES ON MATTERS VITAL TO THEIR INTEREST AND MATTERS THAT UP TO NOW HAVE NOT BEEN TOUCHED ON AND PROBABLY WILL NOT BE UNLESS THE REPRESENTATIVES OF THE VARIOUS INTERNATIONAL UNIONS ARE AFFORDED AN OPPORTUNITY TO BE HEARD IT APPEARS THAT SUB CHAIRMEN OF THESE COMMITTEES CHARGED WITH LISTING THE WITNESSES ARE DISCRIMINATING=

CHARLES.E.SANDS.

4211 - 2nd St. N.W.
Apt. 2-02

THE COMPANY WILL APPRECIATE SUGGESTIONS FROM ITS PATRONS CONCERNING ITS SERVICE

COMMITTEE ON EDUCATION AND LABOR

HOUSE OF REPRESENTATIVES

MEMORANDUM

W. Menny:—
You said this a.m. "Landis"
was not so bad.
Note attached release.
I am reliably
advised that the 16
societe in this release
will be the reported
Bill.

Hushing
2/27/47.

Feb. 25, 1947 Gerald T. Landis, M. C., Indiana

NECESSARY LABOR LEGISLATION

Landis. Mr. Speaker, As a member of the House Labor Committee for the past eight years, I wish to discuss at this time the important matter of labor-management relations and what I believe are necessary amendments to prevent strikes. It is the duty of Congress to remove the evils and racketeering in the field of labor-management relations and still protect labors' rights. Following are amendments I believe should be adopted by both Houses of Congress.

1. Jurisdictional Strike. This means a strike growing out of a dispute between two or more representatives of employees. This strike must be outlawed because innocent employers should not be penalized because unions force a strike to settle difficulties between unions. The mine or factory should continue operating during jurisdictional disputes between unions.

2. Breach of Contract or Wild-cat Strikes. Unions that sign contracts should be liable for violation of such collective bargaining contracts if the right of collective bargaining and the right to strike mean anything.

3. Employers' Right of Free Speech. One of the most important amendments to the Wagner Act is the employers' right of free speech. In the first place there was no intention of Congress to deny this right to anyone because the right of free speech is guaranteed to all of our citizens in the first amendment of the Constitution.

4. Secondary Boycotts. Secondary boycotts engaged in by labor unions to force a third party, not a party to a primary labor dispute, to force that party to cease using the products of the employer engaged in the primary dispute is an activity which should be made illegal. Secondary boycotts have had the effect of throwing a great many innocent people out of work. As a result of these secondary boycotts many of our citizens have been deprived of the deliveries of milk, bread, meat and other essentials of life. These boycotts have cost the nation millions of dollars worth of foodstuffs.

5. Strike Vote. In order to give the rank-and-file of labor a right to participate in collective bargaining, they should have the right of the secret ballot

Feb. 25, 1947 Gerald W. Landis, M. C., Indiana

NECESSARY LABOR LEGISLATION

Landis. Mr. Speaker, As a member of the House Labor Committee for the past eight years, I wish to discuss at this time the important matter of labor-management relations and what I believe are necessary amendments to prevent strikes. It is the duty of Congress to remove the evils and racketeering in the field of labor-management relations and still protect labors' rights. Following are amendments I believe should be adopted by both Houses of Congress.

1. Jurisdictional Strike. This means a strike growing out of a dispute between two or more representatives of employees. This strike must be outlawed because innocent employers should not be penalized because unions force a strike to settle difficulties between unions. The mine or factory should continue operating during jurisdictional disputes between unions.

2. Breach of Contract or Wild-cat Strikes. Unions that sign contracts should be liable for violation of such collective bargaining contracts if the right of collective bargaining and the right to strike mean anything.

3. Employers' Right of Free Speech. One of the most important amendments to the Wagner Act is the employers' right of free speech. In the first place there was no intention of Congress to deny this right to anyone because the right of free speech is guaranteed to all of our citizens in the first amendment of the Constitution.

4. Secondary Boycotts. Secondary boycotts engaged in by labor unions to force a third party, not a party to a primary labor dispute, to force that party to cease using the products of the employer engaged in the primary dispute is an activity which should be made illegal. Secondary boycotts have had the effect of throwing a great many innocent people out of work. As a result of these secondary boycotts many of our citizens have been deprived of the deliveries of milk, bread, meat and other essentials of life. These boycotts have cost the nation millions of dollars worth of foodstuffs.

5. Strike Vote. In order to give the rank-and-file of labor a right to participate in collective bargaining, they should have the right of the secret ballot (State election laws) to vote on the final proposal arrived at by collective bargaining before a strike is called.

6. Equalize Collective Bargaining. In order to have successful bargaining it will be necessary to require that both management and labor participate in collective bargaining.

7. Picketing should be limited to the members of the local union involved in a strike. There is a provision in the Wagner Act which gives workers a right

union or not to join. Employees have the right under the act to ion the National Labor Relations Board for an election to decide if they t to join a union and name the particular union with which they wish to be affiliated. Mass picketing must be abolished.

8. The employer should have the right to petition for an election to determine a question of collective bargaining representation.

9. No foreman or supervisor selected by management should be forced to belong to a labor union. He should be given the right to join or not to join any labor union he chooses.

10. No laboring man should be forced to join a labor union to gain a livelihood.

11. An improved method of mediation and voluntary arbitration of disputes.

12. A 30 day collective bargaining period, prior to the expiration of a contract, is essential. Of course, both the employers and employees should be required to bargain collectively during this period.

13. No subversive individual should be allowed to hold an office in a labor union or corporation.

14. A new federal labor court should be set up to judge cases such as wildcat strikes.

15. A federal law is necessary to stop violence and destruction of property.

16. Some form of Federal seizure is necessary to prevent strikes in industry-wide plants which affect public health and safety.

Mr. Speaker, Labor leaders will probably call these harsh and punitive measures, but these amendments will be necessary to create better labor and management relations and eliminate labor racketeering. Labor still has the right to strike but the rank and file of labor will have the right of a secret ballot to accept or reject any compromise measure mady by management in a labor dispute. Labor will still have the right to bargain on a local plant level or on an industry-wide basis. They will still have the right to the check-off from members through collective bargaining. Wages, safety measures, welfare and etc will be left to collective bargaining.

No one should condone jurisdictional and wildcat strikes, secondary boycotts and violence and destruction of property. The first amendment of the Constitution guarantees everyone the right of free speech. If we are allowed to take this right away from one group, there may come a time when an administration in power would want to take this right away from all groups.

No one would surely deny a person the right to work or even force him to buy a certificate in order to work. No one would surely deny the rank and file of the workers the privelege of a secret strike ballot. The rank and file of labor are anxious to remove subversive leaders from their organizations.

Our big job is to protect the public from unions who have misused their power but we must be careful not to restore the abuses of the past on the part of the employers.

AMERICAN FEDERATION OF LABOR

LONG DISTANCE TELEPHONE NATIONAL 3870 1 8 3 4
CABLE ADDRESS AFEL.

AMERICAN FEDERATION OF LABOR

Executive Council
President, William Green
Secretary-Treasurer, George Meany
A. F. of L. Building, Washington, D. C.

First Vice-President, William L. Hutcheson,
Carpenters' Bldg., Indianapolis, Ind.

Second Vice-President, Matthew Woll,
65 Lexington Ave., New York, N. Y.

Third Vice-President, Joseph N. Weber,
631 Alba Drive, Beverly Hills, Los Angeles, Calif.

Fourth Vice-President, G. M. Bugniazet,
1200 Fifteenth St., N. W., Washington, D. C.

Fifth Vice-President, Geo. M. Harrison,
Railway Clerks' Bldg., Cincinnati, O.

Sixth Vice-President, Daniel J. Tobin,
222 East Michigan St., Indianapolis, Ind.

Seventh Vice-President, Harry C. Bates,
613 Pittock Bl., N. W., Washington, D. C.

Eighth Vice-President, W. D. Mahon,
11th Floor, 1514 Griswold St., Detroit 26, Mich.

Ninth Vice-President, Felix H. Knight,
808-818 Corrigan's Bldg., Kansas City, Mo.

Tenth Vice-President, W. C. Hushousky,
Duncanon & Twelfth Street, Indianapolis, Ind.

Eleventh Vice-President, W. C. Doherty,
416 A. F. of L. Bldg., Washington, D. C.

Twelfth Vice-President, David Dubinsky,
1710 Broadway, New York, N. Y.

Thirteenth Vice-President, John L. Lewis,
United Mine Workers' Bldg., Washington, D. C.

February 27, 1947

Honorable William Lemke
House of Representatives
Washington, D. C.

My dear Congressman:

Your letter dated February 24th refreshes my memory regarding correspondence which passed between us last July. At that time you expressed the opinion that when Congress convened, anti-labor legislation would be introduced and that there was going to be some legislation, which I presumed would be anti-labor legislation, acted upon. In line with your prophecy, much anti-labor legislation has been introduced at this session of Congress. As a result labor has become decidedly stirred. Feeling is running high among labor groups. They just cannot understand wh after the successful record labor made during the war, t they should now be punished and penalized through the enactment of anti-labor legislation.

It would indeed be contradictory on the part of the American Federation of Labor to propose to Congr the enactment of anti-labor legislation, such as has be proposed to the Congress of the United States. Surely labor cannot be expected to sponsor legislation which would limit its legitimate activities, penalize it and make it illegal for labor to engage in a strike when t Constitution of the United States confers upon labor t right to strike.

I made clear in testimony before the House Committee on Labor and Public Welfare yesterday, February 26th, that we had no objections to an amendm to the National Labor Relations Act which provides fo free speech on the part of employers providing they d not resort to threats, intimidation and coercion. In addition, we have asked that the National Labor Relat

Act be amended so as to incorporate in the Act provisions similar to the New York State Labor Relations Act which provide that the workers shall, in a democratic fashion, decide what union shall be voted upon as a collective bargaining unit. In other words, instead of a bureaucratic administrative board, such as the NLRB deciding on the collective bargaining unit, it should be left to the workers who will be affected by the designation of a collective bargaining unit to decide that question.

I further stated we had no objections to legislation providing for the registration of unions so long as such legislation did not require that unions must be licensed by the government. We also have no objections to the filing of financial reports. However, we are bitterly opposed to no-strike legislation, anti-union shop legislation, compulsory arbitration, destructive amendments to the Labor Relations Act, amendments to the Norris LaGuardia Act and similar oppressive and highly objectionable legislation.

For your information, I enclose copy of the testimony I gave before the House Committee on Labor and Public Welfare on February 26th. The opposition of the American Federation of Labor is set forth pretty clearly in this statement.

If after giving consideration to labor's point of view and to its opposition to highly objectionable anti-labor legislation, Congress still persists in passing anti-labor legislation, we will have to accept the decision of Congress as showing that it was anti-labor and biased against labor.

I appreciate your interest in the welfare of labor as you set it forth in your letter and I thank you for the suggestions and recommendations you submitted. I am pleased to send you this reply to your letter and be assured I will welcome any further advice or suggestions you may submit.

Very sincerely yours,

President,
American Federation of Labor

Hon. Wm. Lemke
Wash. D. C
Feb. 27, 1947
P. 2 ds

RECEIVED MAR 3 - 1947

Lin.

February 28, 1947

Dear Sir, 3/3/47 Mr. Hushing

I would very much appreciate knowing the position of the American Federation of Labor in regard to specific measures now before the House & Senate Labor Committees. I would be very grateful for any literature you could furnish me explaining your views.

Thank you very much.

Sincerely yours,

J. Gordon Walter.

14 Market Street

Lewisburg

Pennsylvania.

Pro Labor Statements Feb. 1947

3/5/47

RECEIVED MAR 3 - 1947

Mr Dubois
re route-Labor
& C.I.O. collaboration

file

February 28, 1947

Mr. John P. Healy
6237 S. Bishop Street
Chicago, Illinois

Dear Mr. Healy:

I received and read your interesting letter of recent date. I can see by your letter that you have acquired a thorough understanding of the situation which exists in Congress and of the unfriendly attitude of influential members of Congress toward labor.

We are doing all that lies within our power to prevent the enactment of vicious anti-labor legislation. We shall continue to oppose this legislation with all the power and influence at our command.

I was before the Committee on Labor and Public Welfare on February 26th from 10 A. M. until almost 7 P. M. in the evening, answering questions and presenting our opposition to the enactment of vicious anti-labor legislation.

I noted the suggestion you made regarding collaboration between the officers of the American Federation of Labor and the CIO in radio discussions on anti-labor legislation. We cannot collaborate with the CIO in this or any other matter. I am, however, calling upon our affiliated organizations and all their friends to communicate with members of Congress and to exercise all influence possible in prevailing upon them to vote against vicious anti-labor legislation. If it seems advisable for me to go on the radio and appeal to labor and its friends to stand up in opposition to this anti-labor legislation, I will gladly do so.

Very truly yours,

President,
American Federation of Labor

ds